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Case Number: 24TRCV01058 Hearing Date: July 29, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Wednesday,
July 29, 2026

Department M Calendar No.

PROCEEDINGS

Ryshaun

Lezone Mosley v. First La Brea, LLC, et al.

24TRCV01058

1. First La Brea, LLC's Motion for Summary Judgment, or,
in the Alternative Summary Adjudication (Plaintiff's Complaint)

2. First La Brea, LLC's Motion for Summary Adjudication
(Cross-Complainant's Cross-Complaint)

TENTATIVE RULING

First La Brea, LLC's Motion for
Summary Judgment (Plaintiff's Complaint) is granted.

First La Brea, LLC's Motion for Summary Adjudication
(Cross-Complainant's Cross-Complaint) is granted.

Background

Plaintiff filed the Complaint on March 27, 2024.

Plaintiff alleges the following facts. On May 4, 2023, Plaintiff was at King & Queens Hair Salon in Inglewood, California when he was shot by Kamao Douglas an acquaintance of one of the barbers. Defendant First La Brea, LLC (First La Brea) was the owner of the shopping center in which the barber shop was located. Plaintiff alleges the following causes of action: 1. Premises Liability; 2. Negligence; 3. Negligent Hiring.

On June 10, 2024, Defendant First La Brea, LLC filed a First Amended Cross-Complaint alleging the following causes of action: 1. Indemnity; 2. Apportionment; 3. Express Indemnity; 4. Declaratory Relief.

Requests for Judicial Notice

Defendant's request for judicial notice is granted pursuant to Evidence Code 452(h).

Objections

Plaintiff's objections: Objection 1 is overruled. The Court notes that the objection to simply general "statements from Henry McKie's deposition" does not comply with the format for objections set forth in Cal. Rules of Court, Rule 3.1354(b).

Defendant's objections are overruled. Defendant purports to object to Plaintiff's separate statement of facts. However, the separate statement of facts is not evidence. Defendant does cite to the evidence that Plaintiff provided to support the separate statement of facts, but, again, Defendant did not specifically object to the evidence. Further, if the objections were intended to be, in fact, be directed to the specific evidence cited by Plaintiff, Defendant's objections failed to comply with the format for objections set forth in Cal. Rules of Court, Rule 3.1354(b).

Motions for Summary Judgment/Adjudication

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties'

pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.”

(Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal.4th 826, 843.) “Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2). “If the plaintiff cannot do so, summary judgment should be granted.” Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

“A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

First La Brea's MSJ to the Complaint

Defendant/Cross-Complaint moves “for an Order granting summary judgment in its favor and against Plaintiff, Ryshaun Lezone Mosley, in this negligence action[.]” (Amended Notice of Motion, p. 2, lines 8-9). The motion is made on the grounds that the action has no merit because Defendant owed no duty of care to Plaintiff. Alternatively, Defendant/Cross-Complaint moves for summary adjudication of four issues attempting to summarily adjudicate the three causes of action.

Defendant argues that it had no duty to Plaintiff to protect against the unforeseeable criminal conduct perpetuated by a third party. Based on the substantive evidence provided by the parties, rather than the mere allegations of the Complaint, no duty of care can be imposed upon Defendant because the criminal attack of Plaintiff by Kamao Douglas was not foreseeable.

“The determination whether a duty exists is an issue of law.”

Chee v. Amanda Goldt Property

Management (2006) 143 Cal.App.4th 1360, 1369. A landowner has a duty to maintain land in his or her possession in a reasonably safe condition. See

Rowland v. Christian (1968) 69 Cal.2d 108.

This duty includes the duty to take reasonable measures to secure against foreseeable criminal acts of third parties. See

Frances T. v. Village Green Owners Assn. (1986) 42 Cal.3d 490, 499–501.

“[T]he scope of the duty

is determined in part by balancing the foreseeability of the harm against the burden of the duty to be imposed. [I]n cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required. . .

[D]uty in such circumstances is determined by a balancing of “foreseeability” of the criminal acts against the “burdensomeness, vagueness, and efficacy” of the proposed security measures. While there may be circumstances where the hiring of security guards will be required to satisfy a landowner's duty of care, such action will rarely, if ever, be found to be a “minimal burden.” The monetary costs of security guards is not insignificant. Moreover, the obligation to provide patrols adequate to deter criminal conduct is not well

defined. . . "[A] high degree of foreseeability is required in order to find that the scope of a landlord's duty of care includes the hiring of security guards. . . "[T]he requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well established policy in this state." *Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 678–79 (internal citations and quotations omitted).

"[A] possessor of land who holds it open to the public for entry for business purposes is subject to liability to members of the public while they are upon the land for such a purpose, for physical harm caused by the accidental, negligent or intentionally harmful acts of third persons ... and by the failure of the possessor to exercise reasonable care to (a) discover that such acts are being done or are likely to be done, or (b) give a warning adequate to enable the visitors to avoid the harm, or otherwise to protect them against it. . . Liability will normally be imposed in circumstances where the possessor has reasonable cause to anticipate the misconduct of third persons." *Peterson v. San Francisco Community College Dist.* (1984) 36 Cal.3d 799, 807 (internal citations and quotations omitted). "Heightened foreseeability is satisfied by a showing of prior similar criminal incidents (or other indications of a reasonably foreseeable risk of violent criminal assaults in that location) and does not require a showing of prior nearly identical criminal incidents." *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 245.

"What is apparent from all these cases analyzing defendants' liability for the criminal conduct of a third party is that foreseeability is the crucial factor (*Delgado*, supra, 36 Cal.4th at p. 237, 30 Cal.Rptr.3d 145, 113 P.3d 1159) and that—no matter whether a heightened or lesser degree of foreseeability was required and no matter whether the actual crime committed or only similar conduct needed to be foreseen—foreseeability must be measured by what the defendant actually knew. None of these cases has held that a defendant owed a duty to take steps to prevent or respond to third party crime on the basis of constructive knowledge or information the defendant should have known. We are not aware of any case involving liability for third party criminal conduct that has held that a special relationship creates a duty to investigate or that has charged a defendant with making forecasts based on the information such an investigation might have revealed." *Margaret W. v. Kelley R.* (2006) 139 Cal.App.4th

141, 156 (emphasis added).

Here, Plaintiff has submitted no competent evidence to establish that moving Defendant had knowledge of any violent criminal propensities of the perpetrator or that Defendant had knowledge of the potential that such violent criminal conduct would be perpetrated by him.

Plaintiff places great emphasis on the alleged criminal conduct and gang activity that occurred on the premises between 2018 and 2025, and the number of times that the police were called to the shopping center. Plaintiff specifically points to the shooting that occurred in the parking lot in 2021. While such conduct could, of course, support the contention that Defendant, as landlord, would have a duty of care to provide a certain level of security and protection based on the criminal activity that had occurred in the past on the premises, this does not, in and of itself, mean that Defendant would have a duty of care to Plaintiff to protect Plaintiff from the specific criminal conduct that occurred on this occasion. Here, it is undisputed that Defendant did employ a security guard on the premises – Henry McKie who was actually on duty at the time, and who responded immediately. It is sheer speculation to suggest that extra levels of security would have prevented the shooting at the heart of this case.

Plaintiff suggests that McKie, as Defendant's agent, did actually have notice of the potential for this criminal attack based on a conversation that Plaintiff had with McKie the day prior to the incident. However, this contention is also purely speculative. Apparently, Plaintiff told McKie that a co-worker at the barbershop, Robbie Allen "Khaliyl" Spellman ("Khaliyl" Spellman), asked Plaintiff to "take care of" Kamao Douglas. (Deposition, McKie, p. 59: 20-22). However, McKie then further testifies that he "didn't know of an incident between them, no." (Id. at 60: 1). Plaintiff argues that there was a love triangle between the shooter Douglas, Spellman, and another barbershop employee Aderian Sandlin. Again, it is speculative to conclude that Mr. McKie knew of any specific "love triangle" between Spellman, Douglas, and barbershop employee Aderian Sandlin. However, even assuming arguendo that Mr. McKie may have inferred the existence of such a love triangle, and then even speculating further that "take care of" would mean inflict violence upon, this would merely indicate potential for violence on the part of Plaintiff and not Mr. Douglas. There are no facts or evidence to indicate that moving Defendant had any prior knowledge of the possibility that Mr. Douglas was violent, had potential for committing violence, or that he may be committing imminent violence. Nothing in

these statements indicate that Defendant had knowledge of any prior similar violent incident involving Mr. Douglas or that Defendant should have been aware that the criminal attack suffered by Plaintiff was foreseeable. Nothing in this interaction would have provided a duty for Mr. McKie to even inform any of his superiors of the potential for violent conduct. And, apparently, no such communication was made, and there are no facts to show that Defendant had any notice of any potential for violent activity by Mr. Douglas.

The opposing party cannot controvert the moving party's evidence with a declaration, "based on speculation, imagination, guess work, or mere possibilities." Doe v.

Salesian (2008) 159 Cal.App.4th 474, 481. Nor can Plaintiff use speculative evidence to create or establish a triable issue of material fact. Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, at 773-774. Whether the landlord's breach legally caused plaintiff's injuries is usually a jury question, but where reasonable persons would not differ on the absence of causation, the court may treat the issue as one of law. Nola M. v. University of So. Calif. (1993) 16 Cal.App.4th 421, 427-28. Here, for the reasons noted above, the evidence submitted to attempt to establish duty and breach is simply conjecture. Plaintiff has failed to submit any competent evidence to show that Mr. Douglas had exhibited any dangerous propensities, in the past, on the subject property, or, at a minimum, that Defendant had notice of the potential for dangerous conduct by Mr. Douglas.

Thus, Plaintiff has not set forth sufficient evidence to meet the foreseeability component to establish the existence of a duty of care. For third party criminal acts, there is a heightened requirement of foreseeability, which is not met in this instance. See Wiener v. Southcoast Childcare Centers, Inc. (2004) 32 Cal.4th 1138, 1149 (holding that day care center cannot be liable for unforeseeable incident in which a man deliberately drove his vehicle through a fence striking children). Lacking the existence of a duty of care, no liability can be imposed upon Defendants. See Margaret W. v. Kelley R. (2006) 139 Cal.App.4th 141, 150 (stating that a homeowner was not liable for the sexual assault of plaintiff which occurred on the homeowner's premises because the assault was not foreseeable). A duty of care cannot be imposed upon Defendants merely based on conclusions that Defendants should have known of the potential violent tendencies of the wrongdoer. See Melton v. Boustred (2010) 183 Cal.App.4th 521, 538 (stating that a property owner was not liable after decedent was beaten and stabbed at a party).

Absent specific evidence demonstrating that Mr. Douglas

was a known danger to others and/or the existence of prior similar incidents involving Mr. Douglas to which Defendant had knowledge, the foreseeability component to find a duty of care remains lacking. A landlord is not an insurer of safety and a duty to prevent a sudden and unprovoked unforeseeable attack cannot be imposed upon the landlord. See *Castaneda v. Olsher* (2007) 41 Cal.4th 1205, 1222-23. Finally, as noted above, that Defendant could have prevented the conduct is merely speculative.

The Court further notes that as to the cause of action for premises liability, there is no evidence of any actual dangerous condition on the property itself. “[L]iability is imposed only when there is some defect in the property itself and a causal connection is established between the defect and the injury. In many cases, courts have rejected the claim that an injury caused by the criminal activity of a third person was attributable to a dangerous condition of the property within the meaning of Government Code section 835, because the claims lacked an adequate showing that the property itself was in a defective condition. In *Hayes v. State of California* (1974) 11 Cal.3d 469 [113 Cal.Rptr. 599, 521 P.2d 855], for example, this court in interpreting section 835 acknowledged that “[l]iability for injury caused by a dangerous condition of property has been imposed when an unreasonable risk of harm is created by a combination of defect in the property and acts of third parties.” (*Hayes*, at p. 472, italics omitted.) We warned, however, that “courts have consistently refused to characterize harmful third party conduct as a dangerous condition—absent some concurrent contributing defect in the property itself. (*Ibid.*)” *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1135-36.

As to the third cause of action for Negligent Hiring, Plaintiff fails to show that Defendant employed any of the workers of the hair salon. The allegations of the Complaint specifically state: “Defendants hired a barber and hairdresser that had a relationship with the individual that shot Mr. Mosley. Said employees were negligently hired, retained and supervised as employees when the individual that shot Mr. Mosley was allowed and invited to come back onto the Premises.” (Complaint, ¶ 18). However, it appears that now Plaintiff is attempting to allege a negligent hiring theory based on the conduct of either Mr. McKie or property manager Sammy Milby. However, these are not the allegations set forth in the Complaint. “It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion.” *Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.

“[A]n employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” *Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 264. Here, even assuming the negligent hiring theory was based on the conduct of McKie and Milby, Plaintiff submitted no competent evidence that the hiring of these individuals created the particular risk of harm, and that harm eventually materialized.

Therefore, for the foregoing reasons, Defendant First La Brea’s motion for summary judgment as to Plaintiff’s Complaint is granted.

First La Brea’s Motion for Summary Adjudication
(Cross-Complaint)

Defendant/Cross-Complainant moves “for an Order adjudicating that there are no triable issues of material fact as to whether Defendant and Cross-Defendant, Uchenna Gloria Nwofor d.b.a. Kings and Queens Hair Salon owes First La Brea, LLC, a duty to defend in this action[.]” (Notice of Motion, p. 2, lines 5-7). Cross-Complainant moves for summary adjudication of the third and fourth causes of action based on the contention that Cross-Defendant Uchenna Gloria Nwofor d.b.a. Kings and Queen Hair Salon owes Cross-Complainant an immediate duty to defend.

Duty to
Indemnify/Duty to Defend

“The right to indemnity flows from payment of a joint legal obligation on another’s behalf. [Citations.] The elements of a cause of action for indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible.” *Great Western Drywall, Inc. v. Interstate Fire & Casualty Co.* (2008) 161 Cal.App.4th 1033, 1041 (emphasis in original).

Code Civ. Proc., § 1060 states, in relevant part:

“Any person interested under a written instrument,

excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, [. . .] may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought."

"To qualify for declaratory relief, [Plaintiff] would have to demonstrate its action presented two essential elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [Plaintiff's] rights or obligations.... But even assuming that [Plaintiff's] action satisfies the first requirement, it must still present an 'actual controversy.' The 'actual controversy' language in Code of Civil Procedure section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties. It does not embrace controversies that are conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court. Thus, while a party may seek declaratory judgment before an actual invasion of rights has occurred, it must still demonstrate that the controversy is justiciable. And to be justiciable, the controversy must be ripe." *Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582 (internal citations and quotations omitted; emphasis in original). "The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances." Code Civ. Proc., § 1061

"The existence and scope of duty are legal questions for the court." *Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 477. "If any party moves for summary judgment or adjudication (Code Civ. Proc., § 437c) with respect to the duty to defend against litigation still in progress, the court may proceed as it deems expedient. For example, the

court may resolve legal issues then ripe for adjudication, such as whether any of the contracts at issue include a duty to defend, and, if so, whether the underlying suit or proceeding as to which a defense is sought falls within the scope of any of the parties' contractual duty to defend." *Crawford v. Weather Shield Mfg. Inc.* (2008) 44 Cal.4th 541, 565, fn. 12.

"Implicit in this understanding of the duty to defend an indemnitee against all claims "embraced by the indemnity," as specified in subdivision 4 of section 2778, is that the duty arises immediately upon a proper tender of defense by the indemnitee, and thus before the litigation to be defended has determined whether indemnity is actually owed. This duty, as described in the statute, therefore cannot depend on the outcome of that litigation. It follows that, under subdivision 4 of section 2778, claims "embraced by the indemnity," as to which the duty to defend is owed, include those which, at the time of tender, allege facts that would give rise to a duty of indemnity. Unless the indemnity agreement states otherwise, the statutorily described duty "to defend" the indemnitee upon tender of the defense thus extends to all such claims." *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, 558 (emphasis in original).

Civ. Code, § 2778 states as follows:

"In the interpretation of a contract of indemnity, the following rules are to be applied, unless a contrary intention appears:

1. Upon an indemnity against liability, expressly, or in other equivalent terms, the person indemnified is entitled to recover upon becoming liable;
2. Upon an indemnity against claims, or demands, or damages, or costs, expressly, or in other equivalent terms, the person indemnified is not entitled to recover without payment thereof;
3. An indemnity against claims, or demands, or liability, expressly, or in other equivalent terms, embraces the costs of defense against such claims, demands, or liability incurred in good faith, and in the exercise of a reasonable discretion;
4. The person indemnifying is bound, on request of the person indemnified, to defend actions or proceedings brought against the latter

in respect to the matters embraced by the indemnity, but the person indemnified has the right to conduct such defenses, if he chooses to do so;

5. If, after request, the person indemnifying neglects to defend the person indemnified, a recovery against the latter suffered by him in good faith, is conclusive in his favor against the former;

6. If the person indemnifying, whether he is a principal or a surety in the agreement, has not reasonable notice of the action or proceeding against the person indemnified, or is not allowed to control its defense, judgment against the latter is only presumptive evidence against the former;

7. A stipulation that a judgment against the person indemnified shall be conclusive upon the person indemnifying, is inapplicable if he had a good defense upon the merits, which by want of ordinary care he failed to establish in the action.”

If there is no contrary intention that is provided in the agreement, the indemnification provision would encompass a duty to defend. By specifying a duty to defend, Civil Code § 2778(4) places in every indemnity contract, unless the agreement provides otherwise, a duty to assume the indemnitee's defense, if tendered, against all claims embraced by the indemnity. *Crawford v. Weather Shield Mfg. Inc.* (2008) 44 Cal.4th 541, 557. In *UDC-Universal Dev., LP. v. CH2M Hill* (2010) 181 Cal.App.4th 10, 17, the Court found that, under the indemnity provision, a sub-contractor owed a duty to defend the developer from the time the defense was tendered, even though the Complaint did not specifically allege negligence by the sub-contractor, and even though the jury found the sub-contractor not negligent. *Id.*

In both *Crawford v.*

Weather Shield Mfg., Inc. (2008) 44 Cal.4th 541 and *UDC-Universal Development v, CH2M Hill, Inc.* (2010) 181 Cal.App.4th 10, the California Supreme Court and an appellate Court interpreting the California Supreme Court reiterated that the duty to defend arises immediately upon tender by the indemnitee, and “before the litigation to be defended has determined whether indemnity is actually owed. This duty, as described in the statute, therefore cannot depend on the outcome of that litigation.” *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, 558. In *UDC*, the Court stated that the duty to defend cannot be premised upon a finding of negligence because “requiring such

a determination would render meaningless the defense obligation and contravene Civil Code section 2778 and the Supreme Court's admonition that a duty to defend arises out of an indemnity obligation as soon as the litigation commences and regardless of whether the indemnitor is ultimately found negligent." Id. at 21-22.

Cross-Complainant identifies paragraphs 8.2 and 8.7 of the parties' agreement. Paragraph 8.2 mandates that Cross-Defendant include Cross-Complainant as an additional insured on Cross-Defendant's liability insurance policy. Paragraph 8.7 specifically states: "Except for Lessor's gross negligence or willful misconduct, Lessee shall indemnify, protect, defend and hold harmless the Premises, Lessor and its agents, Lessor's master or ground lessor, partners and lenders, from and against any and all claims, loss of rents and/or damages, liens, judgments, penalties, attorneys' and consultants' fee, expenses and/or liabilities arising out of, involving, or in connection with, the use and/or occupancy of the Premises by Lessee. If any action is brought against Lessor by reason of any of the foregoing matters, Lessee shall upon notice defend the same at Lessee's expense by counsel reasonably satisfactory to Lessor and Lessor shall cooperate with Lessee in such defense. Lessor need not have first paid any such claim in order to be defended or indemnified." (Cross-Complainant's Separate Statement of Facts and Supporting Evidence, 6).

The Court finds that Cross-Complainant has met its burden of showing that Cross-Defendant owed a duty to defend Cross-Complainant against Plaintiff's Complaint. CCP § 437c(f)(1).

Cross-Defendant filed no written opposition to the motion or a separate statement of facts. Cross-Defendant failed to meet her burden to provide specific facts to show the existence of a triable issue of material fact as to Cross-Complainant's third and fourth causes of action. The failure to file a separate statement of facts is sufficient grounds, alone, to grant this motion. CCP § 437c(b)(3).

Therefore, Cross-Complainant's motion for summary adjudication of the third and fourth causes of action of its Cross-Complaint is granted.

Defendant/Cross-Complainant is ordered to give notice of this ruling.